

The plaintiff's request for sanctions is denied.

Analysis:

The request for judicial notice concerns an order in a different action between different parties in which various lawyers from the law firm representing the plaintiff were found to have violated that court's orders. It is irrelevant to the issues presented by this motion. The request is denied on that basis.

Evidence submitted with a reply is untimely and generally is not considered.

The request to compel the plaintiff to appear for her deposition is moot, because she appeared while the motion was pending.

The request for a stay of all other depositions until the plaintiff's deposition is completed is overbroad, because not all defendants have joined in the motion. More importantly, "the methods of discovery may be used in any sequence, and the fact that a party is conducting discovery, whether by deposition or another method, shall not operate to delay the discovery of any other party." (C.C.P., § 2019.020(a).) While the Court may establish a sequence for good cause, the defendants have not established good cause for staying all depositions of all other witnesses.

Although the plaintiff has now appeared for the first day of her deposition, it appears that the deposition would not have occurred had the motion not been filed. The sum of \$2,910.50 is reasonable. A deponent who refuses to respond to multiple requests for available dates for her deposition and refuses to appear on the date on which the deposition is ultimately noticed is not acting with substantial justification.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2504557	JONES VS JONES	MOTION TO COMPEL

Tentative Ruling:

The defendant's motion to compel the plaintiff's responses to the defendant's request for production of documents, set one, is off calendar.

Analysis:

At the hearing on the motion on 5-26-2026, the Court continued the hearing to 6-22-26 and ordered the parties "to meet and confer, either in person, by telephone, or by video conference, within ten (10) days, regarding any issues remaining in dispute following Plaintiff's post-filing supplemental production, and to address the concerns identified in this order. No later than ten (10) days before the continued hearing date, the parties

shall file a joint statement identifying any issues remaining in dispute and requiring Court resolution. If all issues are resolved, the parties shall jointly notify the Court and the hearing shall be taken off calendar. Failure to do these may result in an order to show cause re: sanctions not to exceed \$1,500.”

It does not appear that any such joint statement has been filed. Therefore, the Court cannot tell whether there is any remaining dispute to be resolved. In the absence of a definite dispute, the motion shall be taken off calendar.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2506657	DIEJOMAOH VS VOLKSWAGEN GROUP OF AMERICA, INC.	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling:

The dealer’s demurrer to the 4th cause of action for negligent repair is sustained with 21 days’ leave to amend.

Analysis:

In general, there is no recovery in tort for negligently inflicted financial harm unaccompanied by physical or property damage. (*Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal. 5th 905, 922.) “Not all tort claims for monetary losses between contractual parties are barred by the economic loss rule. But such claims are barred when they arise from — or are not independent of — the parties’ underlying contracts.” (*Id.*, p. 923.) Here, Plaintiff fails to demonstrate that Defendant breached any duty independent of its contractual obligation to perform warranty repairs. The alleged negligence is a failure to perform the repair competently, that is, a duty that flows directly from the service contract under the warranty. Plaintiff’s claim that Defendant performed this duty negligently is a claim for contract breach, not a separate tort.

As the plaintiff notes, the Supreme Court in *Sheen* acknowledged that it has “allowed for tort recovery in some cases involving insurance policies and contracts for professional services.” (*Sheen*, p. 929; and see p. 933.) The *Neel* case on which the Supreme Court relies identifies doctors, lawyers, accountants, and stockbrokers as examples of those rendering professional services. (*Neel v. Magana, Olney, Levy, Cathcart & Gelfand* (1971) 6 Cal.3d 176, 188.) From those examples, it does not appear that the Supreme Court’s use of “professional services” extends to automobile repair.